

1241 E. DYER ROAD, SUITE 120  
SANTA ANA, CA 92705  
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### Site Information:

- Is this site any of the following: listed on the Department of Toxic Substances Control's (DTSC) Calsites list; the subject of a cleanup order or enforceable agreement issued by DTSC; the subject of a remedial action initiated by DTSC; the subject of a corrective action order issued by DTSC; or a facility subject to DTSC hazardous waste treatment facility tiered permitting requirements?                      yes ☐        no ☒        unknown ☐
  
- Is this site listed on a Regional Water Quality Control Board's (RWQCB) Leaking Underground Storage Tank Information System (LUSTIS) or Spills, Leaks, Investigation and Cleanup (SLIC) list or the subject of a cleanup and abatement order issued by a RWQCB?                      yes ☐        no ☒        unknown ☐
  
- What is the property's current land use zoning designation?     SP-14, Beach and Edinger Corridors Specific Plan

**Agreement Conditions:**

- Completion of site activities is dependent on adequate site assessment and remedial activities and attainment of cleanup goals established by Orange County Health Care Agency, Environmental Health (OCHCA) or the appropriate RWQCB. The No Further Action Certification letter will be issued upon documentation of proper removal or abandonment of improvements related to cleanup/assessment activities.
- Site testing, monitoring and analysis will be required, as necessary, to properly determine the nature and extent of the release. A site assessment plan that shows proposed soil and water sampling and analyses should be submitted to OCHCA for concurrence before implementation. Any remedial action plan should be approved by OCHCA before implementation and work performed must be shown to have been effective in mitigating the actual or potential adverse effects of the release. **OCHCA must be notified at least 48 hours in advance of any site mitigation or sampling activities.** Where a remedial action has not been effective, implementation of an alternate effective remedial action is expected.
- Remedial goals will be based on risk assessment considerations that reflect site-specific characteristics and the property's current land use zoning designation. If a land use change is planned or foreseen, OCHCA should be advised.
- OCHCA may, after giving adequate notice, withdraw in whole or part from the supervision of the remedial action should it determine: the responsible party is not in compliance with the remedial action agreement; available staff resources, technical expertise or technical capabilities are not available to adequately supervise the remedial action; the release of the waste that is the subject of the remedial action is of a sufficiently complex nature or may present such a significant potential hazard to human health or the environment that it should be referred to DTSC or a RWQCB; requested site assessment or remedial action plans have not been received in a timely manner; or implementation of approved plans has not occurred in a timely manner.
- Should OCHCA withdraw from the case, in whole or part, OCHCA may refer the case to DTSC or the RWQCB.
- OCHCA may discuss this case with staff at DTSC or the RWQCB at any time in the review process.
- An hourly service fee at Environmental Health's current rate established per resolution of the Orange County Board of Supervisors for work performed by direct oversight staff will be charged. Billings are sent out quarterly and are due within 30 days of receipt of the invoice. A late payment fee of 25% is applicable. **Invoices will be directed to the party named in Section B, page 1 unless OCHCA is otherwise advised in writing.**
- OCHCA reserves the right to send copies of all correspondence to the property owner and others as appropriate.
- The contact person named in Section C, page 1 will be the point of contact for the responsible party unless OCHCA is otherwise advised.
- Pursuant to California law, all information in the site's cleanup file may be public record subject to disclosure to any member of the public who requests it. If it is necessary to include confidential information in your communications with the County, the County recommends that you clearly and prominently mark the information you believe falls into this category. The County will attempt to notify you if disclosure of such information is requested, in order to give you an opportunity to seek a court order prohibiting disclosure of such information. Due to the short statutory time period for the County's compliance with requests for public records, the County will be able to give you only a short period of time in which to seek a court order before the County will be required to disclose the requested information. Further, it is your responsibility to assert that information you believe is confidential should not be disclosed; the County will not make such a claim for you, but will obey a valid court order obtained by you prohibiting disclosure of such information.